

25STCV27558 25STCV27558

County: los-angeles

Division: Civil Law and Motion

Department: 513

Hearing date: 2026-08-10

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Case Number: 25STCV27558 Hearing Date: August 10, 2026 Dept: 513

Superior

Court of California

County

of Los Angeles – Central District

Department 513

Mark Bayaoa

;

Plaintiff,

vs.

Toyota Motor Sales U.S.A.,

Inc.

, et al.,

Defendants.

Case No.:

25STCV27558

Hearing Date:

August 10, 2026

Time:

10:00 a.m.

[Tentative] Order RE:

Motion

to Dismiss for Failure to Pay Transfer Fees

MOVING PARTY: Defendants Toyota Motor Sales U.S.A.,
Inc.

RESPONDING

PARTY: No response

Motion to Dismiss

for Failure to Pay Transfer Fees

The court considered the moving
papers filed in connection with this motion. No opposition was filed.

DISCUSSION

Defendant Toyota

Motor Sales U.S.A., Inc. ("Defendant") moves the court for an order dismissing this action for failure to pay transfer fees, and for sanctions for Defendant and against plaintiff Mark Bayaoa ("Plaintiff").

Upon a court

order transferring an action, any costs and fees must be paid within 30 days after service of notice of the transfer order. (Code Civ. Proc., § 399, subd.

(a).) If costs and fees are not paid, "then, within 30 days after notice of finality of the order of transfer, the court on a duly noticed motion by any party may dismiss the action without prejudice to the cause on the condition that no other action on the cause may be commenced in another court before satisfaction of the court's order for costs and fees." (Ibid.)

On November 20,
2025, the court filed an order on the stipulation by the parties to transfer
this action to the Superior Court for the County of Kern, with Plaintiff to pay
all court fees and costs associated with the transfer of the action.
(Stipulation and Order, filed November 20, 2025.) To date, the action has not
been transferred, and the transfer fees have not been paid. (Ely Decl. ¶ 3.)
The court therefore dismisses this action for failure to pay transfer fees.

The court denies
Defendant's request for sanctions.

ORDER

The court GRANTS
defendant Toyota Motor Sales, U.S.A., Inc.'s motion to dismiss.

The court orders that
this action is dismissed without prejudice as of the date of this order. The
court further orders that no other action on this cause may be commenced in any
other court before payment of all transfer fees and costs is made.

The court orders defendant
Toyota Motor Sales, U.S.A., Inc to give notice of this ruling.

IT IS SO ORDERED.

DATED: August 10, 2026

Robert B. Broadbelt III

Judge of the Superior Court